

# Manchester Corporation Act, 1958

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## CHAPTER vii

An Act to authorise the lord mayor aldermen and citizens of the city of Manchester to construct street works and other works and to purchase lands compulsorily for those and other purposes to make further provision with regard to lands to make provision for the improvement health local government and finances of the city and to provide for the transfer to the said lord mayor aldermen and citizens of the undertaking of the Ardwick Cemetery Limited and for other purposes.  
[18th December 1958.]

### WHEREAS—

(1) The city of Manchester (in this Act called “the city”) is a county borough under the management and local government of the lord mayor aldermen and citizens of the city (in this Act called “the Corporation”):

(2) It is expedient to empower the Corporation to make and maintain the works described in this Act:

(3) It is expedient to confer on the Corporation powers relative to the purchase and use of lands for the several purposes mentioned in this Act:

(4) It is expedient to make further provision in reference to the health local government improvement and finances of the city and to confer upon the Corporation the further powers contained in this Act:

(5) It is expedient to provide for the transfer to the Corporation of the undertaking of the Ardwick Cemetery Limited:

(6) It is expedient that the other provisions contained in this Act be enacted:

(7) The purposes of this Act cannot be effected without the authority of Parliament:

(8) Estimates have been prepared by the Corporation for and in connection with the following purposes:—

|                                                                                                 | £         |
|-------------------------------------------------------------------------------------------------|-----------|
| (a) The construction of the bridge comprised in Street Work No. 1 authorised by this Act ... .. | 50,000    |
| (b) The construction of the other street works authorised by this Act ... ..                    | 1,210,000 |
| (c) The construction of the river work authorised by this Act ... ..                            | 340,000   |
| (d) The laying out levelling and surfacing of land for surface car parks ... ..                 | 15,000    |
| (e) The construction of multi-storey and underground car parks ... ..                           | 1,652,800 |

(9) The works included in such estimates are permanent works and it is expedient that the Corporation be empowered to borrow money for those purposes as provided by this Act:

(10) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

(11) Plans and sections showing the lines and levels of the works authorised by this Act and showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the town clerk of the city which plans sections and book of reference are in this Act referred to respectively as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

## PART I

### PRELIMINARY

1.—(1) This Act may be cited as the Manchester Corporation Act 1958.

(2) The Manchester Corporation Acts 1844 to 1956 and this Act may be cited jointly as the Manchester Corporation Acts 1844 to 1958.



2. This Act is divided into Parts as follows:—

- Part I.—Preliminary.
- Part II.—Lands.
- Part III.—Works.
- Part IV.—Streets buildings and health.
- Part V.—Fire precautions.
- Part VI.—Ardwick Cemetery.
- Part VII.—Superannuation.
- Part VIII.—Finance and rating.
- Part IX.—Miscellaneous.
- Part X.—General.

PART I  
—cont.  
Division of  
Act into  
Parts.

3. The Lands Clauses Acts except section 92 and sections 127 to 133 and 150 and 151 of the Lands Clauses Consolidation Act 1845 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act:

Incorporation  
of Lands  
Clauses Acts.

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation

(2) In this Act unless the subject or context otherwise requires—

“ the Act of 1920 ” means the Manchester Corporation Act 1920;

“ the Act of 1933 ” means the Local Government Act 1933;

“ the Act of 1936 ” means the Public Health Act 1936;

“ the Act of 1947 ” means the Town and Country Planning Act 1947;

“ the appointed day ” has the meaning assigned to it by section 74 (The appointed day) of this Act;

“ the city ” means the city of Manchester;

“ the commission ” means the British Transport Commission;

“ contravention ” includes a failure to comply and “ contravene ” shall be construed accordingly;

“ the Corporation ” means the lord mayor aldermen and citizens of the city;

“ the council ” means the council of the city;



PART I  
—cont.

- “ daily fine ” means a fine for each day on which an offence is continued after conviction;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any order byelaw scheme or regulation for the time being in force within the city;
- “ financial year ” means a period of twelve months ending on the thirty-first day of March;
- “ the general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the city;
- “ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Act of 1947 by the Lands Tribunal Act 1949 by the Town and Country Planning Act 1954 and by this Act;
- “ magistrates’ court ” has the same meaning as in subsection (1) of section 124 of the Magistrates’ Courts Act 1952;
- “ the Minister ” means the Minister of Housing and Local Government;
- “ revenues ” in relation to the Corporation has the meaning assigned to it by section 218 of the Act of 1933;
- “ statutory borrowing power ” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;
- “ statutory security ” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery;
- “ telegraphic line ” has the same meaning as in the Telegraph Act 1878;
- “ the town clerk ” means the town clerk of the city;
- “ the tribunal ” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.



## PART II

## LANDS

5.—(1) Subject to the provisions of this Act the Corporation may enter upon take and use such of the lands in the city delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of the works authorised by this Act and the improvement and development of frontages or of any lands abutting on or adjacent to any street.

Power to  
acquire  
lands.

(2) The powers of the Corporation for the compulsory purchase of land under this section shall cease after the expiration of five years from the first day of December nineteen hundred and fifty-eight.

6.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land or in their statement or description of the ownership or occupation of any land the Corporation after giving ten days' notice to the owner lessee and occupier of the land in question may apply to two justices having jurisdiction in the city for the correction thereof.

Correction of  
errors in  
deposited  
plans and  
book of  
reference.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments and a copy thereof in the Private Bill Office of the House of Commons and with the town clerk and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the land and execute the works in accordance with the certificate.

(4) Any certificate deposited under this section with the town clerk shall be kept by him with the other documents to which it relates.

7.—(1) For the purposes of this Act the following provisions of this section shall have effect in substitution for section 92 of the Lands Clauses Consolidation Act 1845.

Acquisition  
of parts only  
of certain  
properties.

(2) No person shall be required to sell a part only of any house building or factory or of a park or garden belonging to a house if he is willing and able to sell the whole of the house building factory park or garden unless the tribunal determines—

(a) in the case of a house building or factory that such part as is proposed to be taken can be taken without material detriment to the house building or factory; or

PART II  
—cont.

(b) in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(3) If the tribunal determines as aforesaid compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Corporation that part of the house building factory park or garden.

Power to  
expedite entry

8. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act but not less than one month after giving the owner and occupier of the land notice of their intention to exercise the powers of this section the Corporation may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845:

Provided that the Corporation shall pay the like compensation for land of which possession is taken under this section and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

Power to  
enter for  
survey or  
valuation.

9. Any person acting on behalf of the Corporation and duly authorised by the town clerk may at all reasonable times enter on any land which the Corporation are authorised by this Act to acquire compulsorily for the purpose of surveying or valuing the land:

Provided that no land shall be entered under this section unless the Corporation not less than twenty-four hours before the first entry and not less than twelve hours before any subsequent entry have given notice to the owner and occupier of the land.

Disregard of  
recent  
improvements  
and interests.

10. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the tribunal shall not take into account—

(a) any improvement or alteration made or building erected after the fifth day of December nineteen hundred and fifty-seven; or

(b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.



11. In determining the amount of compensation or purchase money payable to any person in respect of his interest in land acquired under this Act in a case where—

- (a) he has an interest in any other land contiguous with or adjacent to the land so acquired; and
- (b) the value of his interest in any such contiguous or adjacent land is enhanced by reason of the execution of the works authorised by this Act or any of them;

the amount of the enhancement in value shall be set off against the compensation or purchase money.

PART II  
—cont.  
Set off of  
betterment  
against  
compensation.

12. Paragraph 9 of the Fifth Schedule to the Town and Country Planning Act 1944 (which relates to modifications of the Acquisition of Land (Assessment of Compensation) Act 1919) as amended by the Act of 1947 and the Housing Act 1957 and as in force at the commencement of this Act shall apply and have effect in relation to any house which in the opinion of the Corporation is unfit for human habitation and not capable at reasonable expense of being rendered so fit and which is comprised in land which the Corporation are authorised by section 5 (Power to acquire lands) of this Act to acquire compulsorily as if—

- (i) such house were comprised in land designated by a development plan under the Act of 1947 as subject to compulsory acquisition or in land which is proposed to be acquired compulsorily under subsection (2) of section 37 or subsection (2) of section 38 of that Act; and
- (ii) reference to the compulsory purchase of a house pursuant to any authorisation given under Part IV of the Act of 1947 by the Minister having jurisdiction to give such authorisation and reference to the application of the Acquisition of Land (Assessment of Compensation) Act 1919 for the purposes of Part IV of the Act of 1947 were respectively references to the compulsory purchase of the house pursuant to the provisions of this Act and to the application of the Act of 1919 to this Act;

and the said paragraph 9 shall subject to the necessary adaptations be construed accordingly.

13.—(1) Any private right of way over any land that may be acquired compulsorily under this Act shall if the council so resolve and give notice of their resolution to the owner of the right be extinguished as from the acquisition of the land whether compulsorily or by agreement or as from the expiration of one month from the service of the notice whichever is the later.

Extinction of  
private rights  
of way.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute under



PART II  
—cont.

and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

Grant of easements by persons under disability.

14.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may if he thinks fit subject to the provisions of those Acts grant to the Corporation any easement or right required by the Corporation for the purposes of this Act in over or affecting any such lands (not being an easement or right of water in which some person other than the grantor has an interest).

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

Provision of substituted sites.

15. The power of the Corporation of purchasing land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites buildings or facilities for the owners and occupiers of land that may be acquired under any enactment.

Power to reinstate owners or occupiers of property.

16.—(1) The Corporation may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired under this Act with respect to his reinstatement elsewhere.

(2) Any such agreement may provide for the exchange of land and for that purpose the Corporation may pay or receive money for equality of exchange.

Allowances to displaced persons.

17.—(1) The Corporation may pay to any person displaced from any building acquired under this Act and carrying on a trade or business therein such reasonable allowance as they may think fit towards the loss which in their opinion he will sustain by reason of the disturbance of his trade or business in consequence of his having to quit the building.

(2) In estimating the said loss the Corporation shall have regard to the period for which the premises occupied by that person might reasonably have been expected to be available for the purpose of his trade or business and the availability of other premises suitable for that purpose.

(3) The provisions of this section shall be in addition to and not in derogation of any enactment or any rule of law relating to compensation for disturbance.

Agreements with adjoining owners.

18.—(1) The Corporation may enter into and carry into effect agreements with any person being the owner of or a person interested in any land abutting on any portion either of the street works authorised by this Act or of land that may be acquired

PART II  
—cont.  
Houses for  
persons in  
employment of  
Corporation.

20.—(1) The Corporation shall have power to provide housing accommodation for persons employed by them and for this purpose they may—

- (a) erect houses and other buildings upon any lands for the time being belonging to them;
- (b) purchase or take on lease houses and other buildings and alter enlarge or adapt any such houses or buildings; and
- (c) fit up equip maintain and let any such accommodation houses and buildings.

(2) Nothing contained in this section shall empower the Corporation to create or permit a nuisance.

### PART III

#### WORKS

Power to  
construct  
works.

21. Subject to the provisions of this Act the Corporation may within the city make and maintain in the lines shown on the deposited plans and according to the levels shown on the deposited sections the works referred to in this section together with all necessary and proper works and conveniences connected therewith or incidental thereto (that is to say):—

Street Work No. 1 A new street (including diversions or improvements of Chester Road Medlock Street Cambridge Street Brook Street London Road and Downing Street and a bridge over Oxford Road) from Chester Road at the junctions of Hargreaves Street Green Street Sykes Street Linby Street York Street Blackshaw Street Pryme Street Southam Street and Crown Street therewith to London Road and Downing Street near Downing Street Bridge;

Street Work No. 2 A new street from Street Work No. 1 at the junction of Great Jackson Street and City Road to a point between Hamilton Street and Leinster Street forty-five yards south-west of the police station in Great Jackson Street;

Street Work No. 3 A new street from Street Work No. 1 at the junction of Great Jackson Street and City Road to a point thirty-three yards south of the junction of Owen Street and Pond Street;

Street Work No. 4 A diversion of Great Jackson Street from Melbourne Street to the junction of Assam Street with City Road;

Street Work No. 5 A diversion of City Road from Gloucester Grove to the junction of Great Jackson Street with Bedford Street and George Street;

under this Act with respect to the sale by the Corporation to him of any land (including any part of a street appropriated by the Corporation under this Act and not required for those works).

PART II  
—cont.

(2) The Corporation may accept as satisfaction of the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Corporation for the purposes of this Act or any easement or right therein.

19.—(1) The Corporation may (with the consent of the Development Minister) lay out and develop any lands for the time being of land belonging to them and may on any such land erect and maintain houses shops offices industrial buildings garages warehouses and other buildings and construct sewer drain pave channel and kerb streets:

Provided that nothing in this section shall apply to land acquired by the Corporation under section 38 or section 40 of the Act of 1947 or to land appropriated by them for the purposes for which land can be acquired under those sections:

Provided also that the powers of this subsection shall not be exercised with respect to any land within an administrative county without the consent of the county council of that administrative county but such consent shall not be unreasonably withheld and any question whether such consent is or is not unreasonably withheld shall be determined by the Minister.

(2) The Corporation may use or dispose of the building or other materials of any houses or structures on any land developed by them which they deem it necessary or desirable to pull down.

(3) In this section the expression “industrial building” includes a building used or designed or suitable for use for the carrying on of any process for or incidental to any of the following purposes (namely):—

- (a) the making of any article or of part of any article; or
- (b) the altering repairing ornamenting finishing cleaning washing packing or canning or adapting for sale or breaking up or demolition of any article; or
- (c) without prejudice to the foregoing paragraphs the getting dressing or preparation for sale of minerals or the extraction or preparation for sale of oil or brine;

being a process carried on in the course of trade or business and for the purposes of this definition the expression “article” means an article of any description including a ship or vessel.

(4) Paragraph (b) of subsection (1) of section 45 (Power to develop lands) of the Manchester Corporation (General Powers) Act 1930 is hereby repealed.



Street Work No. 6 A new street including widenings and improvements of Clarendon Street Downside Street and Nelson Street from Street Work No. 1 near the junction of Chester Street with Elcom Street to Stretford Road at the junction of Downside Street and Nelson Street therewith;

Street Work No. 7 A widening lowering and variation of Oxford Road from a point one hundred and three yards south-west of its junction with Loxford Street to its junction with Saville Street;

River work A diversion of the river Medlock from a point on the said river forty-four yards east of Downing Street Bridge to a point on the said river twenty-four yards north of Westhead's Weir and the culverting of the said diverted river.

22. In the construction of the works authorised by this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding in the case of the river work authorised by this Act two feet either upwards or downwards or in the case of any other works ten feet either upwards or downwards.

23. Subject to the provisions of this Act the Corporation may in connection with the street works authorised by this Act and for the purposes thereof—

- (a) make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous with the said works or any of them;
- (b) make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said works or any of them or of crossing under or over the same or otherwise;
- (c) construct and provide carriageways footways bridges subways vaults cellars arches sewers drains and other works and conveniences;
- (d) stop up and appropriate the site and soil of so much of any streets as shall be rendered unnecessary by the exercise of the powers of this Part of this Act;
- (e) execute any works for the protection of any adjoining land or buildings; and
- (f) remove alter divert or stop up any drain sewer channel or watercourse the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or water in any channel or watercourse.



## PART III

—cont.

Alteration of  
steps etc.

24.—(1) For or in connection with the works authorised by this Act the Corporation may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and shall make reasonable compensation for any damage caused by the exercise of the powers of this section.

(2) Any question of disputed compensation payable under the foregoing provisions of this section shall be determined under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

Subsidiary  
river works.

25. The Corporation may in connection with the river work authorised by this Act and for the purposes thereof—

- (a) make provide and maintain all necessary and convenient walls embankments piling fences culverts drains weirs sluices and footpaths and all such machinery works and appliances as may be required:

Provided that any machinery works or appliances made provided or maintained under the powers of this paragraph shall be so made or provided and so maintained worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line;

- (b) remove the weir known as Westhead's Weir in the river Medlock;
- (c) (i) stop up and discontinue such portion of the river Medlock as will be rendered unnecessary by reason of the diversion thereof under the powers of this Part of this Act; and
- (ii) fill in the channel of the said portion of the river and execute any works which they may deem to be necessary in connection therewith;
- (d) execute any works for the protection of any adjoining lands or buildings; and
- (e) remove alter divert or stop up any drain sewer channel or watercourse the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or water in any channel or watercourse.

River work  
to be part of  
main river.

26. The river work authorised by section 21 (Power to construct works) of this Act when completed and brought into operation shall be part of the main river of the Mersey River Board for the purposes of Part II of the Land Drainage Act 1930

and thereupon the portion of the river Medlock filled in under paragraph (c) of section 25 (Subsidiary river works) of this Act shall cease to be part of such main river and the map approved by the Minister of Agriculture and Fisheries on the seventeenth day of April nineteen hundred and fifty under section 6 of the River Boards Act 1948 shall be deemed to be amended accordingly.

PART III  
—cont.

27.—(1) The Corporation may at their own cost and in accordance with the provisions of this section underpin or otherwise strengthen any house or building within one hundred feet of the works authorised by this Act. Underpinning  
of buildings.

(2) (a) Except in the case of emergency the Corporation shall give at least ten days' notice to the owners lessees and occupiers of any house or building intended to be underpinned or otherwise strengthened.

(b) The provisions of sub-paragraphs (1) (2) and (3) of paragraph 19 of the First Schedule to the Acquisition of Land (Authorisation Procedure) Act 1946 shall apply to the service of any notice required to be given under this subsection as if the notice were a notice required or authorised to be served under that schedule.

(3) If the owner lessee or occupier of any such house or building shall within seven days after the giving of such notice give a counter-notice in writing that he disputes the necessity of such underpinning or strengthening the dispute shall be settled by arbitration.

(4) The Corporation shall be liable to compensate the owners lessees and occupiers of every such house or building for any loss or damage which may result to them by reason of the exercise by the Corporation of the powers of this section provided that the claim for compensation in respect of such loss or damage shall be made to the Corporation within three months from the occurrence thereof.

(5) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section the Corporation may from time to time after the completion of such underpinning or strengthening enter upon and survey such house or building and do such further work for underpinning or strengthening as they may deem necessary or expedient or as in the case of dispute between the Corporation on the one hand and the owner lessee or occupier of the house or building on the other hand shall be settled by arbitration.

(6) If in any such case as is referred to in the last foregoing subsection the underpinning or strengthening shall at any time within twelve months from the completion of the further work prove inadequate for the support or protection of the house or



PART III  
—cont.

building against further injury arising from the execution of the works authorised by this Act the Corporation shall make compensation to the owner lessee or occupier of the house or building in respect of such further injury provided that the claim for compensation in respect thereof be made within one month from the discovery thereof.

(7) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Corporation from the liability to pay compensation under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act to the persons legally entitled thereto.

(8) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Lands Clauses Acts.

(9) In arbitrations under subsection (3) and subsection (5) of this section the reference shall be to a single arbitrator to be appointed by agreement between the parties or in default of agreement by the President of the Institution of Civil Engineers.

Stopping  
up of  
highways.

28.—(1) The Corporation may stop up the whole or such portion or portions as they think fit of so much of the highways mentioned in the First Schedule to this Act as is shown on the deposited plans as intended to be stopped up and thereupon all rights of way over or along the same shall be extinguished and the Corporation may appropriate and use the sites of the highways stopped up:

Provided that the Corporation shall not under the powers of this subsection stop up any part of a highway unless—

- (a) such part is situate within ten yards of the new street (Street Work No. 1) authorised by this Act; or
- (b) such part is bounded on both sides by lands belonging to the Corporation; or
- (c) the Corporation obtain the consent of the owners lessees and occupiers of the houses and lands on both sides thereof.

(2) The Corporation may close to vehicular traffic to such extent as the Corporation may determine the following highways shown on the deposited plans as intended to be closed to through vehicular traffic (namely):—

Clarendon Street Loxford Street Newcastle Street and Southam Street:

Provided that the powers of this subsection shall not be exercised so as to prevent the access—

- (a) by vehicular traffic to premises in the highways therein mentioned; or

(b) by vehicles used for or in connection with the placing maintenance inspection repair renewal or removal of any telegraphic line belonging to or used by the Postmaster-General in under upon along over or across any of the highways therein mentioned.

PART III  
—cont.

(3) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

29.—(1) Where in pursuance of the powers to divert and stop up roads streets and highways conferred by section 21 (Power to construct works) section 23 (Subsidiary street works) or by subsection (1) of section 28 (Stopping up of highways) of this Act any road street or highway or part of a road street or highway is stopped up the following provisions shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have effect in relation to any telegraphic line (hereafter in this subsection referred to as “the existing line”) belonging to or used by the Postmaster-General which is under in upon over along or across such road street or highway or part of a road street or highway at the time of such stopping up:—

- (a) The power of the Postmaster-General to remove the existing line shall be exercisable notwithstanding the stopping up of the road street or highway or part of the road street or highway so however that the said power shall not be exercisable as respects the whole or any part of the existing line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the existing line or that part thereof as the case may be;
- (b) The Postmaster-General may by notice to the Corporation in that behalf abandon the existing line or any part thereof and shall be deemed as respects the existing line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) Subject to the provisions of paragraphs (d) and (e) of this subsection the Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the existing line a



PART III  
—cont.

telegraphic line (hereafter in this subsection referred to as "the substituted line") in such other place as the Postmaster-General may require;

- (d) If the substituted line is of better type or of greater dimensions or of greater capacity or placed at a greater depth than the existing line and the placing of apparatus of that type dimensions or capacity or at that depth (as the case may be) has not been agreed or settled by arbitration under this section then—

(i) if the expense to the Postmaster-General of providing the substituted line shall exceed that which would have been incurred if the substituted line had been of the type dimensions or capacity of the existing line or had been placed at the depth of the existing line (as the case may be) the amount which apart from this paragraph would be payable to the Postmaster-General under paragraph (c) of this subsection in respect of the expense of providing the substituted line shall be reduced by the amount of that excess;

(ii) if the provision of the substituted line by the Postmaster-General involves cost in the execution by the Corporation of the works authorised by this Act exceeding that which would have been involved if the substituted line provided by the Postmaster-General had been of the type dimensions or capacity or had been placed at the depth of the existing line (as the case may be) the Postmaster-General shall pay to the Corporation the amount of that excess.

For the purposes of this paragraph—

(A) an extension of the substituted line to a length greater than the length of the existing line shall not be treated as the provision of a substituted line of greater dimensions than those of the existing line;

(B) where the provision of a joint in the substituted line is agreed or settled by arbitration under this section the consequential provision of a jointing chamber or of a manhole shall be treated as if it also had been so agreed or settled;

- (e) If the substituted line is provided by the Postmaster-General by way of renewal and the existing line was provided by him more than seven and a half years earlier so as to confer on him any financial benefit by deferment of the time for renewal of the existing line in the ordinary course the amount which apart from this subsection would be payable to the Postmaster-General under paragraph (c) of this subsection in respect of the expense of providing the substituted line shall be reduced by the amount which represents that benefit;



(f) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Corporation and the provisions of the Telegraph Acts 1863 to 1954 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof;

PART III  
—cont.

(g) For the purposes of paragraphs (c) (d) (e) and (f) of this subsection references to "the existing line" shall include references to any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment by the Postmaster-General of the existing line.

(2) As soon as the whole or any part of any road street or highway has been stopped up the Corporation shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) Any difference which may arise between the Corporation and the Postmaster-General under subsections (1) or (2) of this section shall be referred to and determined by a single arbitrator to be appointed by agreement between the parties or in default of agreement by the President of the Institution of Civil Engineers.

(4) Nothing in this Act shall authorise the Corporation without the consent in writing of the Postmaster-General to enter upon take or use the lands numbered 359 361 363 365 366 367 and 936 on the deposited plans or to construct any works thereon or thereunder.

#### PART IV

##### STREETS BUILDINGS AND HEALTH

30.—(1) In any street in the city not being a highway repairable by the inhabitants at large the Corporation may execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves pay the cost of the repairs out of the general rate fund:

Urgent repairs of private streets.

Provided that the cost of the repairs executed in any street in any period of three consecutive years under this section shall not exceed seventy-five pounds for each one hundred yards of the length of the street.

(2) The exercise by the Corporation of their powers under this section shall not prejudice their powers under any enactment for the time being in force in the city regulating the procedure relating to the execution of street works and payments in respect thereof.

PART IV  
—cont.  
Crossings  
over grass  
verges.

31. Section 46 (Crossings for horses or vehicles over footways) of the Manchester Corporation Act 1934 shall have effect as if—

- (1) in subsection (1) for the words “any kerbed footway or paved footway” there were substituted the words “any grass verge or any kerbed footway or paved footway” and in paragraph (a) of the said subsection for the word “footway” there were substituted the words “grass verge or footway”;
- (2) in subsection (2) for the word “footway” where it first occurs there were substituted the words “grass verge or footway”;
- (3) in subsection (3) for the word “footway” where it first and thirdly occurs there were substituted the words “grass verge or footway”;
- (4) in subsection (4) for the word “footway” where it first occurs there were substituted the words “grass verge or footway”.

Artificial  
lighting in  
habitable  
rooms.

32.—(1) In every house in the city which is let for human habitation adequate means of lighting shall be provided and maintained in every habitable room in that house.

(2) If adequate means of lighting are not provided and maintained in any such habitable room the Corporation may serve on the owner or occupier a notice requiring him within such time not being less than twenty-one days as may be specified in the notice to execute such works as may be necessary to comply with the provisions of subsection (1) of this section.

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section:

Provided that in the application of the said section 290 that section shall have effect as if the following paragraph were inserted at the end of subsection (3):—

“(g) that having regard to the period during which the house is likely to continue to be used for human habitation it is unreasonable to require the execution of the works”.

(4) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(5) In this section—

the expression “adequate means of lighting” in relation to a room means adequate means of lighting that room by



electricity or gas and includes the provision in that room of adequate electric lines or gas pipes connected with an electricity main or gas main (as the case may be) but does not include—

PART IV  
—cont.

(a) the supply of electricity or gas; or

(b) the provision of lamps;

the expression “habitable room” means a room used or intended to be used as a living room or sleeping room;

the expression “house” includes a flat.

(6) This section shall not apply to a house in an area declared by the council to be a clearance area or to any house as respects which the medical officer of health of the city has made an official representation under section 157 of the Housing Act 1957 either that the house is unfit for human habitation or that it is in an area which should be dealt with as a clearance area.

33.—(1) If it appears to the Corporation that any party or Repair of boundary walls of any court courtyard or yard attached to or walls etc. forming part of any house in the city or the fences or doors of of yards. any such court courtyard or yard—

(a) have collapsed or been pulled down; or

(b) are in danger of collapsing; or

(c) are in such a state of disrepair as to be a source of serious inconvenience to the inhabitants of the house or to the public;

the Corporation may by notice require the owner or occupier of the house to carry out such works (including the rebuilding reinstatement or repair of any such wall fence or door) as are reasonably necessary.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

## PART V

### FIRE PRECAUTIONS

34.—(1) Where plans for the erection of a building have been deposited with the Corporation in pursuance of building byelaws and the plans show that the building will not be provided with such means of access for fire brigade appliances and personnel as they may consider necessary to enable effective action to be taken by them in case of fire at such building the Corporation shall reject the plans. Precautions against fire in certain buildings.

PART V  
—cont.

(2) If the Corporation reject the plans under the authority of this section the notice to be given under subsection (2) of section 64 of the Act of 1936 shall specify this section as that under the authority of which the plans have been so rejected.

(3) Any question arising under this section between the Corporation and a person by whom or on whose behalf the plans are deposited as to whether the plans show that the building will be provided with the necessary access for fire brigade appliances and personnel may on the application of that person be determined by a magistrates' court.

Precautions  
against fire  
in certain  
buildings  
and cubical  
extent of  
buildings.

35.—(1) Within the city unless the Corporation otherwise consent—

(a) no building shall be erected with a storey or part of a storey at a greater height than—

(i) one hundred feet; or

(ii) eighty feet if the area of the building exceeds ten thousand square feet;

(b) no building or part of a building of a cubical extent exceeding two hundred and fifty thousand cubic feet shall be used for purposes of trade or manufacture unless it is divided by division walls in such manner that no division of the building or part of the building as the case may be is of a cubical extent exceeding two hundred and fifty thousand cubic feet:

Provided that—

(i) the Corporation shall not withhold consent under paragraph (a) or (b) of this subsection if they are satisfied that having regard to the proposed use to which the building is to be put proper arrangements will be made and maintained for preventing or reducing danger from fire in the building;

(ii) paragraph (b) of this subsection shall not apply to a building erected before the passing of this Act unless and until after the passing of this Act any structural alteration or extension is made in or to the building or any material change (as defined in subsection (2) of section 62 of the Act of 1936) takes place in the purposes for which the building is used.

(2) In giving their consent under this section the Corporation may attach thereto conditions restricting the user of the building or part of the building or relating to the provision and maintenance of proper arrangements for preventing or reducing danger from fire in the building or part of the building.



(3) Any person who is aggrieved by a decision of the Corporation under this section—

- (i) to withhold consent; or
- (ii) to attach conditions to a consent;

may within twenty-one days from the receipt of notification of the decision appeal to a magistrates' court.

(4) If any person contravenes the provisions of subsection (1) of this section or any condition attached to a consent given under this section he shall be liable to a fine not exceeding fifty pounds and if—

- (a) that person after conviction of the contravention; or
- (b) any other person after notice of the conviction has been served on him by the Corporation;

uses the building without the consent of the Corporation or in contravention of any condition attached to a consent given under this section he shall be liable to a fine not exceeding ten pounds for each day on which he so uses it.

(5) (a) The measurement of the height of any such storey or part of a storey as is mentioned in this section shall be taken at the centre of that face of the building where the measurement is greatest from the level of the footway immediately in front of that face or where there is no such footway from the level of the ground before excavation to the level of the highest part of the interior of the storey.

(b) In this section the expression "cubical extent" in relation to the measurement of a building means the space contained within the external surfaces of its walls and roof and the upper surface of the floor of its lowest storey but excluding any space within any enclosure on the roof of the building used exclusively for accommodating a water tank or lift gear or any like apparatus:

Provided that where a building on one or more of its sides is not enclosed by a wall or walls the building where unenclosed shall be deemed to be enclosed by walls with the external surface thereof in a vertical plane extending downwards from the outer edge of the roof.

(6) Nothing in this section shall apply to any building erected on land belonging to the commission and used for the purposes of their undertaking.

(7) This section shall not apply to any building designed or used by the North Western Gas Board for the manufacture or storage of gas.

PART V  
—cont.Oil-fired  
boilers.

36.—(1) Any person intending to instal or place oil-burning equipment in any building in the city whether erected before or after the passing of this Act or on any land in the city shall give not less than fourteen days' notice to the Corporation of his intention so to do.

(2) (a) The Corporation may make byelaws for securing that in relation to any oil-burning equipment so installed or placed after the passing of this Act proper arrangements will be made for preventing or reducing danger from fire.

(b) Such byelaws may include provisions—

(i) prescribing in connection with the installation or placing of oil-burning equipment in any such building or on any such land the works apparatus and fittings and fire-fighting appliances to be provided and the mode of arrangement of any such works apparatus fittings and appliances; and

(ii) empowering the Corporation if they are satisfied that proper arrangements will be made for preventing or reducing danger from fire to approve the installation or placing of any equipment notwithstanding that it does not comply with the appropriate specification for such equipment contained in the byelaws.

(c) (i) Any person aggrieved by the refusal of the Corporation to approve the installation or placing of any equipment under sub-paragraph (ii) of paragraph (b) of this subsection may within twenty-one days from the receipt of notification of the refusal appeal to the Secretary of State.

(ii) Where an appeal is brought under this subsection the Secretary of State may dismiss or allow the appeal or may vary the decision of the Corporation against which the appeal is made.

(iii) The decision of the Secretary of State on any such appeal shall have effect as if it were a decision of the Corporation given under the byelaws or under this subsection.

(3) (a) If any person instal oil-burning equipment in any building or on any land in the city without giving notice to the Corporation in accordance with subsection (1) of this section he shall be liable to a fine not exceeding fifty pounds.

(b) If any person contravenes any byelaw made under subsection (2) of this section he shall be liable to a fine not exceeding fifty pounds and if—

(i) that person after conviction of the contravention; or

(ii) any other person after notice of the conviction has been served on him by the Corporation;

uses the oil-burning equipment in contravention of such byelaw he shall be liable to a fine not exceeding ten pounds for each day on which he so uses it.



(4) In this section—

PART V  
—cont.

the expression “oil-burning equipment” means a boiler designed or adapted for the combustion of oil and includes the burner storage tanks and the apparatus fittings devices and catch-pits and any other equipment used for or in connection with the heating of such boiler;

the expression “boiler” means a boiler furnace heater oven or similar plant;

the expression “storage tank” means a tank container or device designed or adapted for the purpose of supplying oil to a boiler;

the expression “apparatus and fittings” includes pipes and pipe fittings taps valves pumps gauges vessels fans and filters.

(5) Nothing in this section shall apply to—

(a) any oil-burning equipment if the storage tank or tanks supplying or designed or adapted to supply oil to the boiler has or have a total capacity not exceeding seven hundred and fifty gallons; or

(b) the installation of any boiler container device pipes or fittings by the Central Electricity Generating Board or the North Western Electricity Board for the purposes of their respective undertakings:

Provided that the exemption conferred by this paragraph shall not extend to houses or buildings used as offices or showrooms.

(6) Nothing in this section shall apply to the installation of any oil-burning equipment by the commission for the purposes of their undertaking:

Provided that the exemption conferred by this subsection shall not extend to houses or to buildings used as offices or showrooms other than buildings so used which form part of a railway station.

(7) Section 250 of the Act of 1933 (which relates to the procedure for making byelaws) shall in its application to byelaws made under this section be construed as if it had been amended by the insertion of the words “or confirm with modifications” after the word “confirm” in the second place where that word occurs in subsection (6) thereof.

37.—(1) Any luminous tube sign or other similar apparatus requiring the transforming of electrical energy to a higher voltage fitted externally or internally on or in any premises in the city other than such apparatus which is fitted internally in any premises and is attended when in operation or is used for lighting only

Fireman's  
switches for  
luminous  
tube signs.

PART V  
—cont.

and is already fitted with a readily accessible switch on the low voltage side of the apparatus shall be provided with a cut-off switch on the low voltage side of the transforming apparatus.

(2) Before any apparatus to which subsection (1) of this section applies is fitted on or in any premises in the city the owner or occupier of the premises shall at least fourteen days before the work of fitting the apparatus is begun give notice to the Corporation that such apparatus is about to be fitted indicating the position in which it is proposed that the cut-off switch required under subsection (1) of this section will be placed and in the case of any such apparatus to be fitted internally in any premises shall inform the Corporation of the pattern of the cut-off switch which it is proposed to provide.

(3) The owner or occupier of the premises in respect of which notice is given under subsection (2) of this section shall take into consideration any representations which may be made by the Corporation within ten days of the receipt of such notice in order to secure that the cut-off switch will be placed in a position in which it will be readily recognisable by and accessible to firemen and in the case of any such apparatus to be fitted internally in any premises the work of fitting the apparatus shall not be begun until the pattern and position of the cut-off switch have been approved by the Corporation:

Provided that where the pattern and position of any cut-off switch to be provided in connection with such apparatus to be fitted internally in any premises comply with the provisions of the Institution of Electrical Engineers' regulations the pattern and position shall be deemed to have been approved by the Corporation.

(4) If—

- (a) apparatus on or in any premises is required by subsection (1) of this section to be provided with a cut-off switch and is not so provided; or
- (b) apparatus is fitted on or in any premises without a notice which is required by subsection (2) of this section having been served as required by that subsection; or
- (c) the work of fitting internally in any premises apparatus in respect of which notice is given under subsection (2) of this section is commenced before the pattern and position of the cut-off switch is approved or deemed to have been approved by the Corporation;

the occupier or (if there is no occupier) the owner of the premises shall be liable to a fine not exceeding five pounds.

(5) The provisions of this section shall not prejudice or affect the requirements of the Electricity Supply Regulations 1937 or any regulations or other provisions amending or replacing the same.



(6) This section shall not apply to premises or any part of premises in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force:

Provided that where any luminous tube sign to which but for this subsection subsection (1) of this section would apply is proposed to be fitted on or in any such premises the owner or occupier thereof shall before such apparatus is fitted give notice to the Corporation informing them of the position in which it is proposed to place the cut-off switch.

38.—(1) Where plans of any proposed work deposited with the Corporation in pursuance of building byelaws include proposals for the construction alteration or extension of an underground parking place or the alteration of a building for use as an underground parking place the Corporation may notwithstanding anything in section 64 of the Act of 1936 reject the plans unless there are put before them such proposals as appear to them to be satisfactory for preventing or reducing danger from fire being proposals relating to all or any of the following matters:—

- (a) the construction of the underground parking place and the approaches thereto and the materials to be used in such construction;
- (b) the provision of adequate means of ventilation of the underground parking place;
- (c) the provision of electrical and mechanical and heating equipment in the underground parking place;
- (d) the provision of fire-fighting equipment and appliances in connection with the underground parking place;
- (e) the provision of safe and adequate means of ingress to and egress from the underground parking place;
- (f) the provision of adequate means of access to the underground parking place for fire brigade appliances and personnel.

(2) Subsection (2) of section 64 and subsections (2) to (5) of section 65 of the Act of 1936 shall have effect as if this section were a section of that Act.

(3) If any question arises between the Corporation and a person who has executed or proposes to execute any work—

- (a) whether the work is such as is mentioned in subsection (1) of this section; or
- (b) whether the Corporation ought to have treated as satisfactory any proposal put before them in pursuance of the said subsection;

that question may on the application of that person be referred to the Secretary of State for determination and the Secretary of

PART V  
—cont.

State (after holding an inquiry if he thinks fit) shall determine any question submitted to him under paragraph (a) of this subsection or (as the case may be) may direct the Corporation to treat as satisfactory the said proposal or the said proposal as modified by him.

(4) If after plans of any underground parking place have been passed by the Corporation in consequence of any proposals made under subsection (1) of this section it appears to the Corporation that any such proposal has not been carried into effect or is not being observed the Corporation may by notice to the owner or occupier of the underground parking place prohibit its use as an underground parking place until the proposal has been carried into effect or is being observed.

(5) If any person on whom a notice has been served under subsection (4) of this section uses the underground parking place or permits it to be used as an underground parking place without giving effect to or securing the observance of any proposal specified in the notice he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

Further  
provision  
as to under-  
ground  
parking places.

39.—(1) Without prejudice to the provisions of section 38 (Underground parking places) of this Act the Corporation may by notice to the owner or occupier of any underground parking place in the city which is first brought into use after the passing of this Act require compliance with such conditions as to the use of the underground parking place as may be specified in the notice for the purpose of preventing or reducing danger from fire therein and in the case of any underground parking place as aforesaid in respect of which plans are not deposited with the Corporation in pursuance of building byelaws the Corporation may by notice to the owner or occupier thereof require him to comply with such conditions as aforesaid and with such other conditions with regard to the matters specified in paragraphs (b) to (f) of subsection (1) of the said section 38 as the Corporation think fit.

(2) If any person on whom a notice under this section has been served fails to comply with any requirements specified in the notice he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(3) A person on whom a notice under this section has been served may within twenty-one days of the service of the notice appeal to the Secretary of State on the ground that any requirement specified in the notice is not justified by this section or is unreasonable in character or extent or is unnecessary.

(4) If so required by any such person the Corporation shall deliver to him a certificate signed by the town clerk stating the



grounds on which the Corporation have made any requirement under this section and where such person appeals to the Secretary of State against such requirement the certificate shall be submitted by him to the Secretary of State at the same time that notice of appeal is given or as soon as possible after the receipt by such person of the certificate.

PART V  
—cont.

(5) On consideration of any such appeal the Secretary of State may if he thinks it necessary or desirable cause an inquiry to be held and a report to be made to him by a person appointed by him for the purpose and may if he thinks fit confirm modify alter or annul any requirement made by the Corporation under this section.

40.—(1) In the last two foregoing sections the expression “underground parking place” means a building or part of a building (other than a building or part of a building in respect of which a licence issued by a local authority or the Secretary of State under section 2 or section 3 of the Petroleum (Consolidation) Act 1928 is in force or a building or part of a building to which regulations made by the Secretary of State under section 10 of that Act apply) which provides waiting space or storage space (either alone or in addition to any other facility or service) for cars or other vehicles and of which any part of the floor is situated more than four feet below the surface of the ground adjoining or nearest to such building or part of a building.

Interpretation  
and powers  
of entry for  
purposes of  
last two  
foregoing  
sections.

(2) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of the last two foregoing sections shall be provisions which it is the duty of the Corporation to enforce.

## PART VI

### ARDWICK CEMETERY

41. In this Part of this Act unless the context otherwise requires—

“the cemetery” means the land in the city in or adjacent to Ford Street Hyde Road known as the Ardwick Cemetery;

“the company” means the Ardwick Cemetery Limited;

“the undertaking” means the cemetery undertaking vested in the company and includes—

(a) the cemetery and property numbered 1 to 5 relating to Ardwick Cemetery on the deposited plans and all lands buildings premises apparatus furniture fittings working stock and monuments vested in the company;

PART VI  
—cont.

(b) all investments securities book debts bank balances and cash in the hands of the company or in the hands of their bankers agents or servants;

(c) all books of account papers and other documents relating to the undertaking;

(d) all other real and personal property vested in the company including any rentcharge; and

(e) all rights powers and privileges vested in or had or enjoyed by the company.

Transfer of  
cemetery.

42.—(1) As from the passing of this Act—

(a) the undertaking shall be transferred to the Corporation and all property rights liabilities and obligations held used acquired or incurred by or for the purposes of the undertaking whether vested in the company or not shall without further assurance vest in the Corporation;

(b) the Corporation shall pay and discharge the debts outgoings and liabilities of the company.

(2) In consideration of the transfer of the undertaking the Corporation shall pay to the company the sum of two thousand one hundred pounds or such other sum as may be agreed between the Corporation and the company or determined by a single arbitrator to be appointed by agreement between the parties or in default of agreement by the President of the Institute of Chartered Accountants in England and Wales on the application of either party after giving notice to the other.

(3) All agreements conveyances contracts deeds and other instruments entered into or made with or by the company and in force on the passing of this Act shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the company the Corporation had been a party thereto or bound thereby or entitled to the benefit thereof.

Use of  
cemetery.

43. As from the passing of this Act the Corporation may drain level lay out and maintain the cemetery for use as an open space (including the playing of games) or as a school playing field and for such purposes they may erect and maintain therein such buildings structures or erections as they think fit.

Power to  
lower cover  
up and remove  
tombstones.

44.—(1) Subject to the provisions of this section the Corporation may at their discretion at any time after the passing of this Act—

(a) level or raise the surface of the cemetery notwithstanding that there may be graves thereunder or tombstones thereon and may lower any such tombstones to the level of the ground or cover the same with soil;



(b) remove and if they think fit use sell or otherwise dispose of any tombstone in the cemetery;

PART VI  
—cont.

and the Corporation shall cause to be made a record of such tombstones showing the particulars respecting each tombstone as a separate entry and shall deposit a copy of such record with the Registrar-General.

(2) (a) Before lowering or covering up or removing any tombstone relating to the remains of any deceased person under subsection (1) of this section the Corporation shall—

- (i) publish notice of their intention so to do once in each of two successive weeks in a local newspaper circulating in the city with an interval between the dates of publication of not less than six clear days; and
- (ii) display a notice thereof in a conspicuous position in the cemetery.

(b) Each of the notices shall—

- (i) contain brief particulars of the works intended to be executed; and
- (ii) specify a date as being that on which it is intended that the Corporation will begin to execute those works which shall be a date not less than two months after the date of the earlier of the two publications or after the date on which the notice in the cemetery is first displayed.

(3) (a) At any time before the date specified in a notice under subsection (2) of this section in relation to any tombstone relating to the remains of any deceased person any person who is a personal representative or relative of the deceased person may give notice to the Corporation of his intention to undertake the removal of that tombstone and thereupon subject to the provisions of paragraphs (b) and (c) of this subsection he shall be at liberty to remove that tombstone from the cemetery at his own expense.

(b) If any person giving such notice as aforesaid shall fail to satisfy the Corporation that he is such personal representative or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the Manchester county court who shall have power to make an order specifying who shall remove the tombstone.

(c) If such person shall not have removed such tombstone from the cemetery within one month after the service by him of a notice under paragraph (a) of this subsection or (if application shall have been made to the registrar under paragraph (b) of this subsection) within one month after the making of an order under that paragraph the Corporation may exercise the powers under subsection (1) of this section with regard to that tombstone.

PART VI  
—cont.Register of  
graves and  
burials.

45. The Corporation shall carefully preserve all the registers of graves and of burials within the cemetery and all other books and documents in their possession relating to the cemetery and the Corporation shall from time to time on payment of their reasonable charges give such extracts therefrom as may be required and the certificate of the town clerk that such extracts are correct shall have the same validity as the certificate of the registrar of births deaths and marriages.

Winding up  
of company.

46.—(1) From and after the passing of this Act the company shall subsist only for the purpose of winding up their affairs and carrying into effect the purposes of this Part of this Act so far as they relate to the company.

(2) As soon as practicable after the passing of this Act the directors of the company shall proceed to wind up the affairs of the company in accordance with the provisions of the Companies Act 1948.

(3) The costs of the winding up of the company shall be borne by the Corporation.

## PART VII

## SUPERANNUATION

Collective  
title and  
definitions.

47.—(1) The Manchester Corporation (Superannuation) Acts 1920 to 1954 section 24 (Investment of superannuation fund) of the Manchester Corporation Act 1956 and this Part of this Act may be cited jointly as the Manchester Corporation (Superannuation) Acts 1920 to 1958.

(2) In this Part of this Act unless the context otherwise requires the words and expressions to which meanings are assigned by section 57 (Definitions) of the Act of 1920 have the same respective meanings.

Amendment  
of definition  
of "officer  
or servant".

48. Section 57 (Definitions) of the Act of 1920 shall have effect as if in the definition of the expression "officer or servant"—

(1) paragraph (a) were omitted therefrom; and

(2) the following paragraph were substituted for paragraph (b):—

"(b) a member of the fire brigade of the city to whom the Firemen's Pension Scheme 1956 applies".

Further  
provisions  
as to  
contributions.

49.—(1) Notwithstanding anything contained in section 63 (Return of contributions during contributor's lifetime) of the Act of 1920 no payment shall be made under that section to a contributor who leaves the employment of the Corporation in order to enter the employment of another local authority in such



circumstances that a transfer value is payable in respect of him under the relevant provisions of Part III of the Local Government Superannuation Act 1937.

PART VII  
—cont.

(2) In this section the expression “local authority” has the meaning assigned thereto by section 40 of the Local Government Superannuation Act 1937.

50. If in respect of any period during which a contributor is on leave of absence without pay the contributor and the Corporation so agree they shall contribute to the superannuation fund in respect of that period such amounts as they would respectively have contributed if the contributor’s salary had not been discontinued. Superannuation contributions during absence on leave without pay.

51.—(1) If in consequence of physical or mental infirmity a contributor is unable to discharge efficiently the duties of his post and is transferred to another post at a reduced salary he may continue to contribute to the superannuation fund on the basis of the salary he would have received if his salary had not been reduced and he had continued to occupy his former post and in that event he shall be entitled to the superannuation allowance on that basis. Contributions when salary reduced.

(2) If a contributor suffers a reduction in his salary otherwise than in consequence of physical or mental infirmity he may with the consent of the Corporation continue to contribute to the superannuation fund on the basis of the salary he would have received if his salary had not been so reduced and in that event he shall be entitled to the superannuation allowance on that basis.

52.—(1) Subsections (2) (3) and (4) of section 46 (Widows’ and orphans’ pensions fund) of the Manchester Corporation Act 1946 shall only apply to a member who has exercised the option conferred on him by article 25 of the Manchester Superannuation (Benefits) Scheme 1955. Allocation of widows’ annuities.

(2) In this section the expression “member” has the same meaning as in the said section 46.

53. Section 72 (Notice of provisions of this Part of this Act to officers and servants) of the Act of 1920 shall have effect as if in subsection (3) for the words “each contributor” there were substituted the words “any contributor who by notice to the Corporation requests the Corporation to supply him with such a copy”. Amendment of section 72 of Act of 1920.

54. Subsection (3) of section 61 (Scale of superannuation allowances) of the Act of 1920 and section 36 (Contributions on reduction of salary) of the Manchester Corporation (General Powers) Act 1930 are hereby repealed. Repeals.



PART VII  
—cont.Amendment  
of section 24  
of Act of 1956.

**55.** Section 24 (Investment of superannuation fund) of the Manchester Corporation Act 1956 shall have effect as if in paragraph (e) of the new subsection (2) to section 70 (Use and investment of superannuation fund) of the Act of 1920 after the word “general” there were inserted the words “or special”.

## PART VIII

## FINANCE AND RATING

Power to  
borrow.

**56.**—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall repay any sum so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table (namely):—

| (1)                                                                                      | (2)               | (3)                                                                          |
|------------------------------------------------------------------------------------------|-------------------|------------------------------------------------------------------------------|
| Purpose                                                                                  | Amount            | Period for repayment<br>calculated from the<br>date or dates of<br>borrowing |
| (a) The purchase of lands under the powers of this Act                                   | The sum requisite | Sixty years                                                                  |
| (b) The construction of the bridge comprised in Street Work No. 1 authorised by this Act | £50,000           | Thirty years                                                                 |
| (c) The construction of the other street works authorised by this Act                    | £1,210,000        | Twenty years                                                                 |
| (d) The construction of the river work authorised by this Act                            | £340,000          | Thirty years                                                                 |
| (e) The laying out levelling and surfacing of land for surface car parks                 | £15,000           | Fifteen years                                                                |
| (f) The construction of multi-storey and underground car parks                           | £1,652,800        | Sixty years                                                                  |
| (g) The payment of the costs charges and expenses of this Act                            | The sum requisite | Five years                                                                   |

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and



apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed by this section for the repayment of any money borrowed shall as respects that money be the fixed period for the purposes of the said Part IX.

PART VIII  
—cont.

57. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for  
powers of  
Treasury.

58.—(1) Section 25 (Fire insurance fund) of the Manchester Corporation (General Powers) Act 1899 shall have effect as if the following provisions were substituted for subsections (2) and (3):—

Amendment  
of section 25  
of Manchester  
Corporation  
(General  
Powers)  
Act 1899.

“(2) After the establishment of the fire insurance fund the Corporation may from time to time pay into that fund such sums as they think fit but when the fund shall amount to such sum as may from time to time be prescribed by resolution of the council the Corporation shall discontinue the payments into the fund but so that if the fund is at any time reduced below the sum so prescribed the Corporation may recommence and continue the payments until the fund be restored to the sum so prescribed:

Provided that the establishment of the fire insurance fund shall not prevent the Corporation from insuring any of their buildings works and property against loss or damage by fire in one or more insurance offices.

(3) The Corporation shall provide the payments aforesaid by contributions from the rents and revenues of the lands buildings and undertakings which if the buildings works and property were insured in a public insurance office would be properly chargeable with the payment of the premiums of such insurance and if they think fit by contributions from the general rate fund”.

(2) Section 35 (Increase of fire insurance fund) of the Manchester Corporation Act 1950 is hereby repealed.

59.—(1) The Corporation may establish a fund to be called “the insurance fund” with a view to providing a sum of money which shall be available for making good such losses damages costs and expenses as may from time to time arise in respect of such risks (in this section referred to as “the specified risks”) as may from time to time be specified by resolution of the council.

Insurance  
fund.

PART VIII  
—cont.

(2) The following provisions shall apply to the insurance fund:—

(a) The Corporation may pay into the insurance fund such sums as they think fit out of—

- (i) the general rate fund;
- (ii) the housing revenue account; and
- (iii) the rates and revenues of the water undertaking;

(b) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in respect of the specified risks or any of them all moneys for the time being standing to the credit of the insurance fund shall (unless used in any other manner authorised by section 27 (Use of moneys forming part of sinking and other funds) of the Manchester Corporation Act 1927 or by any other enactment) be invested in statutory securities and the interest and other annual proceeds received by the Corporation in respect of such investments shall be paid into the general rate fund;

(c) The Corporation shall in every financial year pay into the insurance fund out of the general rate fund an amount equal to the interest and other annual proceeds paid into the general rate fund in pursuance of the last preceding paragraph;

(d) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Corporation shall discontinue the payments into the fund but if the fund is at any time reduced below the prescribed amount the Corporation may recommence and continue payments until the fund be restored to the prescribed amount;

(e) If at any time the Corporation reduce the prescribed amount and the amount of the insurance fund exceeds the prescribed amount as so reduced the amount of the excess shall be paid into the general rate fund the housing revenue account and the accounts of the water undertaking in such shares or proportions as the Corporation consider equitable;

(f) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in respect of the specified risks which are payable out of the insurance fund in the order of the dates on which such losses damages costs or expenses become ascertained.

(3) If the Corporation establish an insurance fund under this section they may transfer to that fund all or any of the moneys for the time being in the fire insurance fund established in pursuance



of section 25 (Fire insurance fund) of the Manchester Corporation (General Powers) Act 1899 or the contingency fund (formerly known as the Manchester Corporation Officers' Mutual Guarantee Fund) established in pursuance of section 119 of the Act of 1933.

(4) If at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the consent of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(5) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of the preceding subsection and the amounts of any deficiency not made up by borrowing shall be paid out of the general rate fund the housing revenue account and the rates and revenues of the water undertaking in such shares or proportions as the Corporation consider equitable.

(6) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(7) In this section—

“insurance office” means an insurance company or an underwriter being a member of an association of underwriters;

“prescribed amount” means such sums as may from time to time be prescribed by the council;

“the water undertaking” means the water undertaking of the Corporation.

60.—(1) Notwithstanding anything contained in any other enactment—

- Collection and recovery of water rates rents or charges.
- (a) any water rate rent or charge payable to the Corporation by any person in respect of a supply of water to any premises in the city may be demanded and collected together with the general rate payable by that person;
  - (b) in respect of premises within the city the same book may be used for the water rates rents or charges and the general rate;
  - (c) any water rate rent or charge may (without prejudice to any other right or remedy of the Corporation) be recoverable in the same manner and subject to the same provisions as apply to the recovery of the general rate;
  - (d) there may be included in one and the same demand complaint information summons or warrant or in any schedule thereto any general rate or water rate or rent

PART VIII  
--cont.

or charges for water or money due in respect of any general rate or water rate or rent or charges for water due and payable to the Corporation from the same person whether the same are or may be levied due payable or recoverable under the same or different enactments from time to time in force in the city;

- (e) any summons relating to a sum due to the Corporation in respect of any water rate rent or charge may be served and any warrant relating to a sum due to the Corporation in respect of any water rate rent or charge may be directed to the same persons as and executed in the same way as if it related to the general rate.

(2) (a) Any book used by the Corporation under this section for the general rate and for water rates rents and charges shall be deemed to be the rate book the Corporation are required to provide keep or use under and for the purposes of any enactment for the time being in force relating to the making and levying of—

- (i) the general rate; or
- (ii) any water rate;

and the provisions of any such enactment shall subject to the necessary adaptations be construed accordingly.

(b) Any demand note used by the Corporation for the purposes of this section shall for the purposes of any enactments relating to the general rate or to any water rate be deemed to be a demand note which is required or authorised to be used under those enactments.

(3) (a) The Minister may by order made on the application of the Corporation prescribe and from time to time vary the form of rate book and demand note or either of them to be used for the purposes of this section.

(b) If the Minister under this subsection prescribes a form of rate book or demand note the Corporation shall use a rate book or demand note in that form or in a form to the like effect.

Application of  
section 11 of  
Rating and  
Valuation  
Act 1925 to  
water rates  
and rent.

61.—(1) The council may resolve that on and after such date as may be specified in the resolution the provisions of section 11 of the Rating and Valuation Act 1925 (which relate to the rating of and collection of rates by owners) shall apply to the domestic water rate made and levied by the Corporation under section CXI of the Manchester Corporation Waterworks Act 1847.

(2) On and after the date specified in a resolution passed in pursuance of subsection (1) of this section—

- (a) the provisions of the said section 11 shall apply to the domestic water rate as they apply to the general rate;



(b) section XCIV (Owners of groups of houses paying rates in advance entitled to discount) of the Manchester Corporation Waterworks Act 1847 shall cease to have effect;

(c) the Corporation may where they make a percentage allowance to any owner in respect of the domestic water rate make an allowance at the same rate per centum in respect of the public water rate levied upon him by the Corporation under section CXI (which authorises the levying of a domestic water rate and a public water rate on premises within the city) of the Manchester Corporation Waterworks Act 1847.

(3) (a) The Corporation shall cause to be published in a local newspaper circulating in the city notice of the passing of a resolution under subsection (1) of this section and of the date therein specified.

(b) Either—

(i) a copy of any such newspaper containing any such notice;  
or

(ii) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

62.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions in and subject to which rates are recoverable from occupiers of rated hereditaments.

Recovery of  
rates etc.  
from certain  
owners.

The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression “owner” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditaments to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the council.

PART VIII  
—cont.Recovery of  
water rates  
etc.

63. The provisions of the preceding section shall apply within the limits within which the Corporation are for the time being authorised to supply water to water rates rents and charges payable to the Corporation to the same extent as they apply within the city to the general rate and for the purposes of such application the said provisions shall have effect as if for references to "general rate" or "rates" there were substituted references to "water rates rents and charges":

Provided that this section shall not apply to any hereditaments in respect of which the council have—

- (a) in pursuance of the powers contained in section CXXI (Power to rate the Owners of Houses in certain Cases) of the Manchester Corporation Waterworks Act 1847 exercised their discretion to rate and assess the owner; or
- (b) in pursuance of the powers contained in section 37 (Water rate payable by owners in certain cases) of the Manchester Corporation Act 1934 determined that the owner shall pay the rate for the supply of water.

Recovery of  
rates from  
persons  
removing.

64. If a justice is satisfied on complaint by any rate collector or other authorised officer of the Corporation that any person is quitting or is about to quit any premises and has failed to pay on demand any general rate which may be due from him to the Corporation and intends to evade payment of the same the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the person in default to meet the claim and to detain them until the complaint is determined upon the return of the summons.

Minimum  
rate for  
water for  
domestic  
purposes.

65. Section 35 (Minimum rate for water for domestic purposes) of the Manchester Corporation Act 1934 shall have effect as if for the words "ten shillings" wherever those words occur there were substituted the words "fifteen shillings".

Recovery of  
certain  
expenses by  
instalments  
from  
occupiers.

## 66. When—

- (1) the Corporation shall have by order made under section 291 of the Act of 1936 declared any expenses recoverable by them under that section in respect of any premises to be recoverable from the occupier of such premises; and
- (2) the general rate or any water rate rent or charge in respect of such premises is collected from the occupier; and



- (3) after the date of such order the general rate or any water rate rent or charge payable in respect of such premises is increased;

PART VIII  
—cont.

the Corporation shall for the purpose of serving notice of increase of rent under section 3 of the Rent Act 1957 but for no other purpose be deemed to be the landlord of the premises.

## PART IX

### MISCELLANEOUS

67.—(1) The Corporation shall pay and discharge out of the general rate fund—

Receipts and  
expenses of  
Court of  
Record.

- (a) the expenses of providing and maintaining the court;
- (b) the expenses of carrying on the business of the court including the expenses of providing such officers clerks and other assistants as the council may from time to time appoint; and
- (c) all other liabilities relating to the court which fall to be discharged by the Corporation.

(2) There shall be paid into the general rate fund—

- (a) all moneys received by the treasurer of the city from the registrar of the court; and
- (b) all other moneys and receipts due and payable to the Corporation in relation to the court.

(3) Section 35 (City Treasurer to keep Accounts and how Monies to be applied and Provisions for Audit) and section 36 (City Fund to be applicable if necessary for Purposes of Act) of the Act of 1868 are hereby repealed.

(4) Section 32 (Account of Fees to be kept by Registrar) of the Act of 1868 shall have effect as if the following words were omitted therefrom:—

“and the Registrar shall also keep a daily and a half-yearly Account in Writing of the Fees received in the Court on all Proceedings therein where the Cause of Action shall have arisen within the Jurisdiction of the Court of Record for the Hundred of Salford in the County of Lancaster as it existed before the passing of this Act”.

(5) Section 33 (Registrar to render account and pay over Monies as Council shall direct) of the Act of 1868 shall have effect as if the following words were omitted therefrom:—

“distinguishing in the said Account the Fees received in the Court on all Proceedings therein where the Cause



PART IX  
—cont.

of Action shall have arisen within the jurisdiction of the Court of Record for the Hundred of Salford in the County of Lancaster as it existed before the passing of this Act from the Fees received in the Court on all other Proceedings therein ”.

(6) In this section the expression “the court” means the Court of Record for the Hundred of Salford as constituted by the Salford Hundred Court of Record Acts 1868 and 1911 and the expression “the Act of 1868” means the Salford Hundred Court of Record Act 1868.

Use of  
Christ Church  
Graveyard.

68.—(1) In this section the expression “the burial ground” means Christ Church Graveyard Hulme in the city formerly known as the Swedenborgian Burial Ground.

(2) Notwithstanding anything contained in any enactment but subject to the provisions of subsection (3) of this section it shall be lawful for the Corporation to use deal with or dispose of the burial ground for building or any other purpose in like manner as if no part thereof had ever been used or set apart for the purpose of the burial of human remains.

(3) Before erecting or causing to be erected any building (other than a building used or intended to be used for or in connection with the use of the burial ground as an open space or playing field) on the burial ground the Corporation shall in accordance with the provisions of section 70 (Removal of human remains) of this Act remove or cause to be removed therefrom the remains of all deceased persons interred therein.

Agreements  
with  
trustees of  
Cross Street  
Chapel.

69.—(1) In this section the expression “the trustees” means the trustees for the time being of Cross Street Chapel in the city.

(2) (a) The trustees may convey to the Corporation so much of any land for the time being vested in them as may be required for the widening of Cross Street in the city.

(b) The Corporation shall pay to the trustees in consideration of the conveyance of any land under this subsection such sum as may be agreed between the Corporation and the trustees or as failing agreement may be determined by the Lands Tribunal and for the purpose of determining such sum regard shall be had to the expense incurred or to be incurred by the Corporation in removing the remains of deceased persons from such land.

(3) Notwithstanding anything contained in the Disused Burial Grounds Act 1884 or any other enactment the trustees may upon the land forming the site of their existing chapel and burial ground—

(a) erect a new chapel and any buildings incidental to a place of worship including housing accommodation for persons employed by the trustees; or



(b) alter adapt or enlarge any of their existing buildings.

PART IX  
—cont.

(4) Subject to the provisions of the next succeeding section the Corporation may at their own expense remove the remains of any deceased persons interred in or under any land conveyed to the Corporation under subsection (2) of this section or in or under any part of Cross Street Chapel Walks and Cheapside which formerly constituted part of the burial ground of the trustees.

(5) The Corporation and the trustees may enter into and carry into effect agreements for and with respect to the purposes of this section.

(6) The following enactments are hereby repealed:—

Section 20 (Confirming agreement with trustees of Cross Street Chapel) of the Manchester Corporation Act 1914;

Section 15 (Extension of agreement with trustees of Cross Street Chapel) of the Manchester Corporation Act 1934;

Section 54 (Amendment of section 15 of Manchester Corporation Act 1934) of the Manchester Corporation Act 1950.

(7) The agreement made the twelfth day of December nineteen hundred and thirteen between the trustees and the Corporation and set out in the Second Schedule to the Manchester Corporation Act 1914 shall be void and of no force or effect.

70.—(1) Before proceeding to remove any human remains in pursuance of either of the last two foregoing sections the Corporation shall publish notice of their intention so to do in a local newspaper circulating in the city once in each of two successive weeks with an interval between each publication of not less than six clear days and display the notice in a conspicuous position in the burial ground concerned and such notice shall have embodied in it the substance of subsections (2) (3) (4) (5) and (6) of this section. Removal of human remains.

(2) At any time within two months after the first publication of such notice any person who is a personal representative or relative of any deceased person in respect of whose remains the Corporation have published a notice under subsection (1) of this section may give notice to the Corporation of his intention to undertake the removal of such remains and any tombstone relating thereto and thereupon he shall be at liberty to cause such remains to be removed to and reinterred in any burial ground or cemetery in which burials may legally take place but in the case of a churchyard only with the previous consent of the incumbent of the parish and to remove such tombstone.

PART IX  
—cont.

(3) If any person giving such notice as aforesaid shall fail to satisfy the Corporation that he is such personal representative or relative as he claims to be the question shall be determined on the application of either party by the Manchester county court and such court shall have the power to make an order specifying who shall remove the remains and any tombstone relating thereto.

(4) The expense of such removal and reinterment of such remains and such removal of such tombstone (not exceeding in respect of remains removed from any one grave and any tombstone relating thereto the sum of thirty pounds) shall be defrayed by the Corporation such sum to be apportioned fairly according to the number of remains in the grave.

(5) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Corporation in respect of the remains in any grave or if after such notice has been given the person giving the same or (as the case may be) the person specified in any order made under subsection (3) of this section shall fail to comply with the provisions of this section the Corporation may remove the remains of the deceased person and cause them to be reinterred in such burial ground or cemetery in which burials may legally take place as the Corporation think suitable for the purpose but in the case of a churchyard only with the previous consent of the incumbent of the parish.

(6) The Corporation shall remove and dispose of all tombstones relating to the remains of any deceased person removed under this section except tombstones removed in pursuance of subsection (2) of this section and the Corporation shall cause to be made a record of such tombstones and of any tombstone removed in pursuance of the said subsection (2) showing the particulars respecting each tombstone as a separate entry and shall deposit a copy of the record with the Registrar-General.

(7) Any jurisdiction or power conferred on the Manchester county court by this section may be exercised by the registrar of the court.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the city.

Further  
powers as to  
libraries.

71. Notwithstanding anything contained in the Public Libraries Acts 1892 to 1919 the powers of the Corporation under those Acts in relation to any library provided by them under those Acts shall include—

- (a) the power to charge such reasonable sum as the Corporation may prescribe for the reservation of a book;



- (b) the power to prescribe a period not being less than seven days within which any book borrowed from such library must be returned thereto;
- (c) the power to recover from any person who fails within such prescribed period to return to such library any book so borrowed such reasonable sum as the Corporation may prescribe in respect of each week or part of a week in which he so fails to return such book together with any expenses incurred by the Corporation in sending to such person notices in respect thereof;
- (d) the power to prohibit any such person from borrowing any other book from any library provided by the Corporation under those Acts until such person has paid any such sum as is due to the Corporation under paragraph (c) of this section;
- (e) the power to prescribe different periods and charges for the purposes of this section in relation to different books or kinds of books:

PART IX  
—cont.

Provided that the sums prescribed by the Corporation for the purposes of paragraph (c) of this section shall not for each book exceed sixpence or such greater sum as may be approved from time to time by the Minister of Education.

## PART X

### GENERAL

72. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister except that in the case of byelaws made under section 36 (Oil-fired boilers) of this Act the confirming authority shall be the Secretary of State. Confirming authority for byelaws.

73.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section the expression “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

PART X  
—cont.The appointed  
day.

74.—(1) For the purposes of this Act the expression “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the city notice—

- (a) of the passing of any such resolution and of the date fixed thereby; and
- (b) of the general effect of the provisions of this Act coming into operation as from that date;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the registration of a person carrying on any business or of premises used for any purpose it shall be lawful for any person who—

- (a) immediately before that day was carrying on that business or using any premises for that purpose; and
- (b) had before that day duly applied for the registration required by that provision;

to continue to carry on that business and to use those premises for that purpose until he is informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (2) of section 76 (Appeals) of this Act.

Restriction  
on right to  
prosecute.

75. Proceedings in respect of an offence created by or under this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation.



76.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to appeals to a court of summary jurisdiction under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use premises for any purpose for which they were lawfully used up to that time;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business and use those premises for that purpose.

77.—(1) The sections of the Act of 1936 mentioned in Part I of the Second Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

Application  
of general  
provisions of  
Act of 1936.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to the following Parts of this Act (that is to say):—

- Part IV (Streets buildings and health); and
- Part V (Fire precautions).

78. For the protection of the commission the following provisions shall apply and have effect:—

For pro-  
tection of  
British  
Transport  
Commission.

The commission may after the exercise by the Corporation of any of the powers contained in paragraph (c) of section 25 (Subsidiary river works) of this Act remove the whole or any part of any viaduct carrying their railway or Altrincham Street over the closed portion of the river Medlock and may substitute a solid embankment therefor:

PART X  
—cont.

Provided that the commission shall not exercise the powers of this section except with the consent of all the owners and occupiers of the part of the site of the closed portion of the river Medlock on or over which such viaduct has been constructed and of any other land which may be required by the commission for the construction of such embankment.

For protection of  
North  
Western  
Gas Board.

79. For the protection of the North Western Gas Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

- (1) In this section unless the subject or context otherwise requires—

"apparatus" means pipes and other apparatus belonging to or lawfully laid erected or maintained by the board (not being apparatus in respect of which the relations between the Corporation and the board are regulated by the provisions of Part II of the Public Utilities Street Works Act 1950) and includes any works constructed for the lodging therein of apparatus;

"in" in a context referring to apparatus includes under over along across or upon;

"position" includes depth:

- (2) Notwithstanding anything in this Act the Corporation shall not under the powers of this Act acquire compulsorily any apparatus of the board situated in a street:
- (3) Section 21 of the Public Utilities Street Works Act 1950 shall apply to the construction of the diversion of the river Medlock authorised by section 21 (Power to construct works) of this Act as if such diversion were a work executed for road purposes within the meaning of paragraph (a) of subsection (1) of the said section 21 and were of the kind referred to in that section and as if any apparatus in any land through or over which the diversion is made were in a street or in controlled land abutting on a street:
- (4) (a) Whenever by virtue of the provisions of the said section 21 section 23 (Subsidiary street works) and section 28 (Stopping up of highways) of this Act any highway or portion of a highway to which any of those sections applies and in which any apparatus is situate is stopped up or diverted the board shall notwithstanding such stopping up or diversion continue to have the same powers and rights in respect of any apparatus remaining in the highway or portion of a highway so stopped up



or diverted as if the same had remained a highway or may and if reasonably required by the Corporation shall with all reasonable dispatch—

- (i) remove the apparatus and relay or replace the same in the highway (if any) substituted for the highway or portion of highway so stopped up or in some other position; or
  - (ii) provide and lay or place other apparatus in such substituted highway or in some other position in lieu of such existing apparatus;
- (b) Any apparatus to be constructed in lands of the Corporation in pursuance of this paragraph shall be constructed in such manner and in such line or situation as may be agreed between the board and the Corporation or in default of agreement settled by arbitration;
- (c) Where the Corporation afford to the board facilities and rights for the construction maintenance repair renewal and inspection in lands of the Corporation of apparatus in substitution for apparatus required to be removed under this paragraph those facilities and rights shall be granted upon such terms and conditions as may be agreed between the Corporation and the board or in default of agreement determined by arbitration:

Provided that in determining such terms and conditions as aforesaid in respect of apparatus to be constructed in any of the works authorised by section 21 (Power to construct works) of this Act the arbitrator shall—

(i) give effect to all reasonable requirements of the Corporation for ensuring the safety of the said works and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with any such works; and

(ii) so far as it may be reasonable and practicable to do so in the circumstances of the particular case give effect to the terms and conditions applicable to the apparatus (if any) constructed in the lands of the Corporation for which the alternative apparatus is to be substituted:

Provided also that if the facilities and rights to be afforded by the Corporation in respect of any alternative apparatus and the terms and conditions subject to which the same are to be granted are in the opinion of the arbitrator less favourable on the whole to the board than the facilities and rights enjoyed by them in respect of the apparatus to be removed and the terms and conditions to which those facilities and rights are subject the

PART X  
—cont.

arbitrator shall make such provision for the payment of compensation by the Corporation to the board in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the particular case:

- (5) Whenever by reason or in consequence of the exercise by the Corporation of the powers of the said sections 21 23 or 28 any apparatus (other than apparatus for which new apparatus has been substituted at the expense of the Corporation under the provisions of this section) is rendered derelict useless or unnecessary the Corporation shall forthwith pay to the board such a sum as may be agreed between the Corporation and the board or as failing agreement between them may be determined by arbitration to be the value of the apparatus so rendered derelict useless or unnecessary and such apparatus shall upon such payment become the property of the Corporation:
- (6) The Corporation shall repay to the board the reasonable expenses incurred by the board of or in connection with the removal and relaying or replacing of any apparatus and the provision and laying or placing of any new apparatus under the provisions of paragraph (4) of this section and the reasonable costs of and incidental to—
- (i) the cutting off of any apparatus from any other apparatus; and
  - (ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this paragraph:

Provided that subsections (3) and (4) of section 23 of the Public Utilities Street Works Act 1950 (which imposes limitations on undertakers' rights to payment) shall so far as applicable extend and apply to any payment to be made by the Corporation under this paragraph as if the works hereinbefore in this paragraph mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words " specified as so necessary in a specification of the works set out in Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority " there were substituted the words " agreed or settled by arbitration under section 79 (For protection of North Western Gas Board) of the Manchester Corporation Act 1958 ":

- (7) Nothing in the following sections of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the



said sections and the Corporation shall so exercise those powers as not to render unreasonably inconvenient the access to any such apparatus:—

PART X  
—cont.

Section 24 (Alteration of steps etc.);

Section 25 (Subsidiary river works);

Section 27 (Underpinning of buildings):

- (8) Before the Corporation make any requirement or impose any condition under section 46 (Crossings for horses or vehicles over footways) of the Manchester Corporation Act 1934 as amended by section 31 (Crossings over grass verges) of this Act they shall if there is any apparatus in the grass verge kerbed footway or paved footway give to the board twenty-eight days' notice of their intention to do so and the Corporation shall as part of the requirement or as a condition prescribe such works for the protection of the apparatus (to be carried out at the expense of the owner or occupier of the premises concerned) as the board may within fourteen days of such first-mentioned notice reasonably require:
- (9) (a) Any difference arising between the Corporation and the board under this section shall in default of agreement be referred to and settled by a single arbitrator to be agreed between the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party to the dispute after notice in writing to the other;
- (b) In settling any difference under this section the arbitrator shall have regard to any duty or obligation the undertakers may be under in respect of any apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

80. For the protection of the Central Electricity Generating Board and the North Western Electricity Board (each of whom is in this section referred to as "the undertakers") the following provisions shall unless otherwise agreed in writing between the Corporation and the undertakers apply and have effect:—

- (1) In this section unless the context or subject otherwise requires—

"authorised work" means any work authorised by section 21 (Power to construct works) of this Act and includes any work carried out or thing done under the powers of section 23 (Subsidiary street works) of this Act;

PART X  
—cont.

“apparatus” means electric lines or works (as respectively defined in the Electricity (Supply) Acts 1882 to 1936) belonging to or lawfully laid or erected by the undertakers (not being apparatus in respect of which the relations between the Corporation and the undertakers are regulated by the provisions of Part II of the Public Utilities Street Works Act 1950) and includes any structure for the lodging therein of apparatus;

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than previously;

“in” in a context referring to apparatus or alternative apparatus in land includes a reference to apparatus or alternative apparatus under over or upon land;

“position” includes depth:

- (2) Notwithstanding anything in this Act or shown on the deposited plans the Corporation shall not under the powers of this Act acquire otherwise than by agreement any apparatus situate in a street:
- (3) If the Corporation for the purpose of the construction of an authorised work acquire or appropriate any lands or any interest therein in which any apparatus is placed that apparatus shall not be removed under this section and any right of the undertakers to maintain repair renew or inspect that apparatus in those lands shall not be extinguished until adequate alternative apparatus shall have been constructed and be in operation to the reasonable satisfaction of the undertakers:
- (4) The Corporation for the purpose of the construction of any authorised work may require the undertakers to remove any apparatus. If the Corporation require the undertakers to remove such apparatus and shall give to the undertakers written notice of such requirement together with a plan and section of the proposed work and of the proposed position of the alternative apparatus to be provided or constructed so as to provide adequate alternative apparatus in lieu of the apparatus to be removed or if in consequence of the construction of an authorised work the undertakers shall reasonably require to remove any apparatus the Corporation shall afford to the undertakers the necessary facilities and rights for the construction of such alternative apparatus in other lands of the Corporation and thereafter for the maintenance repair renewal and inspection of such apparatus:



Provided that if the alternative apparatus or any part thereof is to be constructed elsewhere than in other lands of the Corporation and the Corporation are unable to afford such facilities and rights as aforesaid in the lands in which the alternative apparatus or such part thereof is to be constructed the undertakers shall on receipt of a written notice to that effect from the Corporation forthwith use their best endeavours to obtain the necessary facilities and rights in such last-mentioned lands:

- (5) (a) Any alternative apparatus to be constructed in lands of the Corporation in pursuance of paragraph (4) of this section shall be constructed in such manner and in such line or situation as may be agreed between the undertakers and the Corporation or in default of agreement settled by arbitration;
- (b) The undertakers shall after the alternative apparatus to be provided or constructed shall have been agreed or settled by arbitration as aforesaid and after the grant to the undertakers of any such facilities and rights as are referred to in paragraph (4) of this section proceed with all reasonable dispatch to construct and bring into operation the alternative apparatus and thereafter to remove any apparatus required by the Corporation to be removed under the provisions of this section:
- (6) Where in accordance with the provisions of this section the Corporation afford to the undertakers facilities and rights for the construction maintenance repair renewal and inspection in lands of the Corporation of alternative apparatus in substitution for apparatus to be removed as aforesaid those facilities and rights shall be granted upon such terms and conditions as may be agreed between the Corporation and the undertakers or in default of agreement determined by arbitration:

Provided that in determining such terms and conditions as aforesaid in respect of alternative apparatus to be constructed across or through an authorised work the arbitrator shall—

(a) give effect to all reasonable requirements of the Corporation for ensuring the safety and efficient operation of the authorised work and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with any such work; and

(b) so far as it may be reasonable and practicable to do so in the circumstances of the particular case give effect to the terms and conditions applicable to



PART X  
—cont.

the apparatus (if any) constructed through the land of the Corporation for which the alternative apparatus is to be substituted:

Provided also that if the facilities and rights to be afforded by the Corporation in respect of any alternative apparatus and the terms and conditions subject to which the same are to be granted are in the opinion of the arbitrator less favourable on the whole to the undertakers than the facilities and rights enjoyed by them in respect of the apparatus to be removed and the terms and conditions to which those facilities and rights are subject the arbitrator shall make such provision for the payment of compensation by the Corporation to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the particular case:

- (7) (a) Not less than twenty-eight days before commencing to execute an authorised work which is near to or will or may affect any apparatus the removal of which has not been required by the Corporation under paragraph (4) of this section the Corporation shall submit to the undertakers a plan section and description of the work to be executed;
- (b) Such work shall be executed only in accordance with the plan section and description submitted as aforesaid and in accordance with such reasonable requirements as may be made by the undertakers for the alteration or otherwise for the protection of the apparatus or for securing access thereto and the undertakers shall be entitled by their officer to watch and inspect the execution of such works:

Provided that if the undertakers within fourteen days after the submission to them of any such plan section and description shall in consequence of the work proposed by the Corporation reasonably require the removal of any apparatus and give written notice to the Corporation of such requirement the foregoing provisions of this section shall apply and have effect as if the removal of such apparatus had been required by the Corporation under paragraph (4) hereof:

Provided also that nothing in this sub-paragraph shall preclude the Corporation from submitting at any time or from time to time but in no case less than twenty-eight days before commencing the execution of any such works a new plan section and description in lieu of the plan section and description previously submitted and



thereupon the provisions of this paragraph shall apply to and in respect of such new plan section and description;

PART X  
—cont.

(c) The Corporation shall not be required to comply with sub-paragraph (a) of this paragraph in a case of emergency but in such a case they shall give to the undertakers notice as soon as reasonably practicable and a plan section and description of the works as soon as reasonably practicable thereafter and shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:

(8) (a) Where in consequence of this Act any highway or portion of a highway in which apparatus is situate is stopped up or diverted the undertakers shall continue to have the same powers and rights in respect of any apparatus remaining in the highway so stopped up or diverted as if the same had remained a highway or may and if reasonably required by the Corporation shall with all reasonable dispatch—

(i) remove the apparatus and relay or replace the same in the highway (if any) substituted for the highway or portion of highway so stopped up or in some other position; or

(ii) provide and lay or place other apparatus in such substituted highway or in some other position in lieu of such existing apparatus;

(b) Any apparatus to be constructed in lands of the Corporation in pursuance of this paragraph shall be constructed in such manner and in such line or situation as may be agreed between the undertakers and the Corporation or in default of agreement settled by arbitration;

(c) If the undertakers are required to relay or replace apparatus or to provide and lay or place other apparatus in some other position the Corporation shall afford to the undertakers the necessary facilities and rights for such relaying or replacement or (as the case may be) for such laying or placing and thereafter for the maintenance repair renewal and inspection of the apparatus;

(d) The provisions of paragraph (6) of this section shall *mutatis mutandis* apply to any facilities or rights afforded by the Corporation to the undertakers under this paragraph:

(9) The Corporation shall repay to the undertakers the reasonable expenses incurred by the undertakers of or in connection with the removal relaying or replacing

PART X  
—cont.

of any apparatus and the provision and laying or placing of any new apparatus under the provisions of paragraph (4) or paragraph (8) of this section and the reasonable costs of and incidental to—

(i) the cutting off of any apparatus from any other apparatus; and

(ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this paragraph:

Provided that subsections (3) and (4) of section 73 of the Public Utilities Street Works Act 1950 (which imposes limitations on undertakers' rights to payment) shall so far as applicable extend and apply to any payment to be made by the Corporation under this paragraph as if the works hereinbefore in this paragraph mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words " specified as so necessary in a specification of the works set out in Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority " there were substituted the words " agreed or settled by arbitration under section 80 (For protection of electricity undertakers) of the Manchester Corporation Act 1958 ":

- (10) Nothing in the following sections of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the Corporation shall so exercise those powers as not to render unreasonably inconvenient the access to any such apparatus:—

Section 24 (Alteration of steps etc.);

Section 25 (Subsidiary river works);

Section 27 (Underpinning of buildings):

- (11) Where by reason or in consequence of the stopping up of any street under the powers of this Act any apparatus belonging to the undertakers is rendered derelict useless or unnecessary the Corporation shall pay to the undertakers the then value of such apparatus (which shall thereupon become the property of the Corporation) and the reasonable cost of and incidental to the cutting off of such apparatus from any other apparatus and of and incidental to the execution or doing of any works or things rendered necessary or expedient by reason of or in consequence of such apparatus being so rendered derelict useless or unnecessary:

Provided that the Corporation shall not under the provisions of this paragraph be required to pay to the



undertakers the value of any apparatus rendered derelict useless or unnecessary if to the reasonable satisfaction of the undertakers other apparatus shall at the expense of the Corporation have been provided and laid and made ready for use in substitution for the apparatus so rendered derelict useless or unnecessary:

PART X  
—cont.

(12) Before the Corporation make any requirement or impose any condition under section 46 (Crossings for horses or vehicles over footways) of the Manchester Corporation Act 1934 as amended by section 31 (Crossings over grass verges) of this Act they shall if there is any apparatus in the grass verge kerbed footway or paved footway give to the undertakers twenty-eight days' notice of their intention to do so and the Corporation shall as part of the requirements or as a condition prescribe such works for the protection of the apparatus (to be carried out by the undertakers at the expense of the owner or occupier of the premises concerned) as the undertakers may within fourteen days of such first-mentioned notice reasonably require:

(13) Any difference arising between the Corporation and the undertakers under this section shall in default of agreement be referred to and settled by a single arbitrator to be agreed between the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party to the dispute after notice in writing to the other.

**81.** The following provisions for the protection of the Mersey River Board (in this section called "the board") shall unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

For protection of Mersey River Board.

(1) In this section "the river work" means the river work authorised by section 21 (Power to construct works) of this Act:

(2) The Corporation shall not exercise the powers contained in paragraph (c) of section 25 (Subsidiary river works) of this Act until the diversion of the river Medlock comprised in the river work has been completed to the reasonable satisfaction of the board:

(3) The river work and the works authorised by paragraphs (a) (b) and (d) of the said section 25 shall be constructed only in accordance with plans sections and specifications to be submitted to and reasonably approved by the board:

PART X  
—cont.

- (4) If the board do not within two months of the submission to them of any plans sections and specifications pursuant to paragraph (3) of this section intimate to the Corporation their approval or disapproval thereof they shall be deemed to have approved of the same:
- (5) Until the river work has become part of the main river of the board the Corporation shall reimburse the board the amount of any costs damages or expenses which may necessarily be incurred by them in the exercise of their statutory powers and duties arising out of or in consequence of the carrying out by the Corporation of the river work (including the culverting of the diverted river) or any works authorised by the said section 25:
- (6) Any dispute which may arise between the Corporation and the board under this section shall be referred to an engineer to be agreed between the Corporation and the board or failing agreement to be appointed by the President for the time being of the Institution of Civil Engineers on the application of either party after notice in writing to the other of them and subject thereto the provisions of the Arbitration Act 1950 shall apply to any such reference.

Saving for  
trusts etc.

82. No power conferred upon the Corporation by the following sections of this Act (namely):—

Section 19 (Development of land);

Section 20 (Houses for persons in employment of Corporation);

shall be exercised in such a manner—

- (a) as to be at variance with any trust subject to which any land or building is held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or
- (b) as to contravene any covenant or condition (other than a covenant or condition which was subsisting immediately before the date of the gift or lease to the Corporation) subject to which a gift or lease of any land or building has been accepted by or granted to the Corporation without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.



83. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

PART X  
—cont.  
Saving for  
town and  
country  
planning.

84. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

Costs of  
Act.

## SCHEDULES

## FIRST SCHEDULE

## STREETS TO BE STOPPED UP WHOLLY OR IN PART

|                        |                                     |
|------------------------|-------------------------------------|
| Alba Place.            | Glossop Street.                     |
| Angle Street.          | Great Jackson Street.               |
| Ardance Street.        | Greek Street.                       |
| Back Brierley Street.  | Hague Street.                       |
| Back Greek Street.     | Hamilton Street.                    |
| Back Newton Street.    | Harris Street.                      |
| Back Rutland Street.   | Heron Street.                       |
| Back Street.           | Hesketh Street.                     |
| Back Temple Street.    | Holgate Street.                     |
| Back York Street.      | Holt Place.                         |
| Bedale Street.         | Holt Street.                        |
| Bedlow Street.         | Hope Street.                        |
| Berwick Street.        | Howard Street.                      |
| Beta Street.           | Hughes Street.                      |
| Billington Street.     | Hulme Place.                        |
| Blackshaw Street.      | Humphrey Street.                    |
| Boswell Street.        |                                     |
| Brook Street.          | Jackson Terrace.                    |
|                        | James Place.                        |
| Cambridge Street.      |                                     |
| Camden Street.         | Kingston Street.                    |
| Caton Street.          |                                     |
| Chester Street.        | Leaf Street.                        |
| City Road.             | Leigh Street.                       |
| Clarendon Place.       | Leinster Street.                    |
| Clarendon Street.      | Linby Street.                       |
| Cloak Street.          | Little Street.                      |
| Clowes Terrace.        | Lower Chatham Street.               |
| Constantine Street.    | Lower Ormond Street.                |
| Crawshaw Street.       | Loxford Street.                     |
| Crown Place.           | Lyon Street.                        |
| Crown Street.          |                                     |
| Cudley Street.         | Mansell Street.                     |
|                        | Mark Lane.                          |
| Downside Street.       | Medlock Street.                     |
| Durham Place.          | Melbourne Street.                   |
|                        | Millar Street.                      |
| Elcom Street.          | Mount Place.                        |
| Ellora Street.         | Mount Street (Hulme).               |
|                        | Mount Street (Chorlton-on-Medlock). |
| Fairfield Street.      |                                     |
| Flora Street.          | Naton Street.                       |
| Froggart's Court.      |                                     |
| Frost Street.          | Owen Street.                        |
| Furness Street.        |                                     |
| Garden Street (Hulme). | Pierce Street.                      |
| George Street.         | Pryme Street.                       |



Rex Street.  
Ripley Street.  
River Street.  
Russell Street.

Temple Place.  
Temple Street.  
Thompson Terrace.  
Tonge Street.

1ST SCH.  
—cont.

St. Luke's Street.  
School Street.  
Sidney Street.  
Sidwick Street.  
Silver Street.  
Smith's Court.  
Southam Street.  
Stafford Street.  
Stockton Street.  
Stone Street.  
Stott Street.  
Strine's Court.  
Swan Street.

Welcomb Street.  
Well Street.  
Whitfield Street.  
Whittaker Street.  
William Street.  
Wilmott Street.  
Woburn Place.  
Wood Street.

York Place.  
York Street (Hulme).  
York Street (Chorlton-on-Medlock).

## SECOND SCHEDULE

### SECTIONS OF ACT OF 1936 APPLIED

#### PART I

#### SECTIONS APPLIED GENERALLY

| Section | Marginal note                                                     |
|---------|-------------------------------------------------------------------|
| 271     | Interpretation of "provide".                                      |
| 283     | Notices to be in writing; forms of notices etc.                   |
| 284     | Authentication of documents.                                      |
| 285     | Service of notices &c.                                            |
| 286     | Proof of resolutions &c.                                          |
| 288     | Penalty for obstructing execution of Act.                         |
| 296     | Summary proceedings for offences.                                 |
| 297     | Continuing offences and penalties.                                |
| 304     | Judges and justices not to be disqualified by liability to rates. |
| 328     | Powers of Act to be cumulative.                                   |

2ND SCH.  
—cont.

## PART II

## SECTIONS APPLIED TO PARTS IV AND V OF THIS ACT

| Section | Marginal note                                                                                                   |
|---------|-----------------------------------------------------------------------------------------------------------------|
| 275     | Power of local authority to execute certain work on behalf of owners or occupiers.                              |
| 276     | Power of local authority to sell certain materials.                                                             |
| 277     | Power of councils to require information as to ownership of premises.                                           |
| 287     | Power to enter premises.                                                                                        |
| 289     | Power to require occupier to permit works to be executed by owner.                                              |
| 291     | Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments. |
| 292     | Power to make a charge in respect of establishment expenses.                                                    |
| 293     | Recovery of expenses &c.                                                                                        |
| 294     | Limitation of liability of certain owners.                                                                      |
| 295     | Power of local authority to grant charging orders.                                                              |
| 299     | Inclusion of several sums in one complaint &c.                                                                  |
| 329     | Saving for certain provisions of the Land Charges Act 1925.                                                     |

*Table of Statutes referred to in this Act*

| Short title                                               | Session and chapter         |
|-----------------------------------------------------------|-----------------------------|
| Lands Clauses Consolidation Act 1845 ...                  | 8 & 9 Vict. c. 18.          |
| Manchester Corporation Waterworks Act 1847                | 10 & 11 Vict. c. cciii.     |
| Salford Hundred Court of Record Act 1868                  | 31 & 32 Vict. c. cxxx.      |
| Local Loans Act 1875 ... ..                               | 38 & 39 Vict. c. 83.        |
| Telegraph Act 1878 ... ..                                 | 41 & 42 Vict. c. 76.        |
| Disused Burial Grounds Act 1884 ...                       | 47 & 48 Vict. c. 72.        |
| Manchester Corporation (General Powers) Act 1899          | 62 & 63 Vict. c. clxxxviii. |
| Cinematograph Act 1909 ... ..                             | 9 Edw. 7 c. 30.             |
| Salford Hundred Court of Record Act 1911                  | 1 & 2 Geo. 5 c. clxxii.     |
| Manchester Corporation Act 1914 ...                       | 4 & 5 Geo. 5 c. cxlvi.      |
| Acquisition of Land (Assessment of Compensation) Act 1919 | 9 & 10 Geo. 5 c. 57.        |
| Manchester Corporation Act 1920 ...                       | 10 & 11 Geo. 5 c. xcvi.     |
| Land Charges Act 1925 ... ..                              | 15 Geo. 5 c. 22.            |
| Rating and Valuation Act 1925 ...                         | 15 & 16 Geo. 5 c. 90.       |
| Manchester Corporation Act 1927 ...                       | 17 & 18 Geo. 5 c. ciii.     |
| Petroleum (Consolidation) Act 1928 ...                    | 18 & 19 Geo. 5 c. 32.       |



| Short title                                             | Session and chapter               |
|---------------------------------------------------------|-----------------------------------|
| Land Drainage Act 1930 ... ..                           | 20 & 21 Geo. 5 c. 44.             |
| Manchester Corporation (General Powers) Act 1930        | 20 & 21 Geo. 5 c. clxxviii.       |
| Local Government Act 1933 ... ..                        | 23 & 24 Geo. 5 c. 51.             |
| Manchester Corporation Act 1934 ... ..                  | 24 & 25 Geo. 5 c. xcvii.          |
| Public Health Act 1936 ... ..                           | 26 Geo. 5 & 1 Edw. 8 c. 49.       |
| Local Government Superannuation Act 1937                | 1 Edw. 8 & 1 Geo. 6 c. 68.        |
| Town and Country Planning Act 1944 ...                  | 7 & 8 Geo. 6 c. 47.               |
| Ministers of the Crown (Transfer of Functions) Act 1946 | 9 & 10 Geo. 6 c. 31.              |
| Manchester Corporation Act 1946 ... ..                  | 9 & 10 Geo. 6 c. xxxviii.         |
| Acquisition of Land (Authorisation Procedure) Act 1946  | 9 & 10 Geo. 6 c. 49.              |
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